

Terms of Service

Muses of Morenita, operated by Amelia Arabe · Effective Date: September 7, 2026

1. Agreement to Terms

These Terms of Service ("Terms") are a binding agreement between you ("Muse," "Client," "User," or "you") and Amelia Arabe, operating Muses of Morenita ("Muses of Morenita," "we," "us," or "our") from Los Angeles, California. By creating an account, accessing your public portfolio, engaging our direct client services, or accessing a client-tracking link, you agree to these Terms. If you do not agree, do not use the platform or services.

2. Services

2.1 Muses of Morenita Platform

Muses of Morenita lets multi-hyphenate creatives ("Muses") build a public portfolio across multiple career categories, display projects and artwork, list products in a shared Archive, and track their own client engagements. We reserve the right to modify, suspend, or discontinue any part of the platform at any time, with reasonable notice where practicable.

2.2 Direct Client Services

Amelia Arabe separately provides web design, brand system, and technical consulting services to clients. The scope, deliverables, timeline, and pricing for each such engagement are governed by a separate written project agreement between us and the Client; if these Terms conflict with a project agreement, the project agreement controls.

2.3 Client-Tracking Links

A Muse using the platform's client-tracking tools can generate a private link that lets one of their own clients view a project's status, milestones, and updates — no account, password, or file upload required on the client's side. This feature is provided to the Muse for managing their own client relationships; we are not a party to that relationship.

3. Platform Accounts

- Accounts are created and accessed via passwordless email sign-in ("magic link"). You are responsible for the security of the email account used to sign in.
- You are solely responsible for the content you publish to your portfolio, including ensuring you have the rights to any images, text, or other material you upload.
- You will not publish content that is unlawful, infringing, defamatory, obscene, or otherwise objectionable, or attempt to disrupt, damage, or gain unauthorized access to the platform or any account other than your own.

- We reserve the right to suspend or terminate an account for violation of these Terms.

4. Fees

4.1 Platform Fees

Creating and hosting your portfolio on Muses of Morenita is free. Connecting a custom domain to your portfolio is a paid add-on. Additional tool packages (for example, the bulletin-board pinboard tool, and other tools as they become available) are offered as one-time purchases, not subscriptions. Current pricing for any paid feature is shown at the point of purchase within the platform.

4.2 Direct Client Engagement Fees

Payment terms for direct client-services engagements are governed by the applicable project agreement. Unless otherwise specified in writing:

- A deposit of 50% of the total project fee is required before work begins.
- The remaining balance is due upon project completion and prior to delivery of final files.
- Payments are processed through Found; by paying, you agree to Found's applicable terms.
- All fees are non-refundable once work has commenced, except as expressly provided in the project agreement.
- Revisions beyond the agreed scope are billed at our standard advisory rate of \$350 per hour.

5. Intellectual Property

5.1 Your Portfolio Content

You retain ownership of the portfolio content you create and publish on Muses of Morenita (projects, artwork, case studies, and similar material). By publishing content, you grant us a limited, non-exclusive license to host, display, and transmit it as necessary to operate the platform and your public portfolio page.

5.2 Client Deliverables

Upon full payment for a direct client engagement, and subject to the applicable project agreement, we assign the Client all rights to the final deliverables created specifically for that engagement. We retain ownership of preliminary drafts, tools, frameworks, and background intellectual property, and reserve the right to display final deliverables in our own portfolio and marketing unless the Client requests otherwise in writing.

5.3 Client-Provided Materials

You represent that any materials you provide for a project are owned by you or that you have the necessary rights to share them with us. You grant us a limited, non-exclusive license to use such materials solely to complete your project.

6. Confidentiality

We treat client project details and business information shared with us as confidential, and will not disclose it except as necessary to complete a project or as required by law. Non-public information we share with a client — including pricing, processes, and proprietary methodology — is likewise confidential and may not be disclosed without our written consent.

7. DISCLAIMER OF WARRANTIES

OUR PLATFORM AND SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT. WE DO NOT WARRANT THAT THE PLATFORM WILL BE UNINTERRUPTED, ERROR-FREE, OR FREE OF HARMFUL COMPONENTS. YOUR USE OF THE PLATFORM AND SERVICES IS AT YOUR SOLE RISK.

8. LIMITATION OF LIABILITY

TO THE MAXIMUM EXTENT PERMITTED BY LAW, WE SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, DATA, USE, OR GOODWILL, ARISING OUT OF OR IN CONNECTION WITH THESE TERMS OR YOUR USE OF THE PLATFORM OR SERVICES. OUR TOTAL LIABILITY FOR ANY CLAIM SHALL NOT EXCEED THE TOTAL AMOUNT YOU PAID US IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

9. Indemnification

You agree to indemnify, defend, and hold harmless Amelia Arabe and Muses of Morenita from any claims, liabilities, damages, losses, and expenses (including reasonable attorneys' fees) arising from: (a) your use of the platform or services; (b) your violation of these Terms; (c) your violation of any third party's rights; or (d) content or materials you provide.

10. Termination

We may suspend or terminate your access to the platform at any time, with or without cause or notice, if we believe you have violated these Terms or applicable law. Provisions that by their nature should survive termination — intellectual property, payment obligations, confidentiality, warranty disclaimers, limitation of liability, and dispute resolution — will survive.

11. Dispute Resolution

These Terms are governed by the laws of the State of California, without regard to conflict-of-law principles. Any dispute that cannot be resolved informally will be subject to binding arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules, taking place in Los Angeles, California, or remotely by mutual agreement. Either party may still seek injunctive or other equitable relief in a court of competent jurisdiction.

12. Changes to These Terms

We may update these Terms from time to time. When we do, we will update the effective date above; for material changes, we will notify you by email or through the platform. Continued use of the platform after updated Terms take effect constitutes acceptance of the new Terms.

13. Miscellaneous

- **Entire Agreement:** these Terms, together with any applicable project agreement, are the entire agreement between you and us regarding the platform and services.
- **Severability:** if any provision is found unenforceable, the remaining provisions remain in effect.
- **Waiver:** our failure to enforce any provision is not a waiver of that provision.
- **No Agency:** nothing here creates an agency, partnership, or joint venture between you and us.

14. Contact

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